

CITY CONTRACT NO. _____

This Agreement is entered into this _____ day of _____, 2011, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the "City," and Meals on Wheels of Cheyenne, Inc., whose address is 2015 South Greeley Highway, Cheyenne, Wyoming 82007, hereinafter referred to as the "Contractor."

W I T N E S S E T H:

WHEREAS, the City has need for certain human services in the community; and

WHEREAS, the Contractor is capable and desirous of performing said services.

NOW, THEREFORE, the parties mutually agree as follows:

1. **SCOPE OF SERVICES:** The Contractor shall, in a satisfactory and proper manner as determined by the City, perform the obligations set forth in Appendix A, attached hereto and incorporated by this reference, hereinafter referred to as the "Program."

2. **TERM:** The Contractor shall commence performance of this Agreement on the 1st day of July, 2011, and shall complete performance to the satisfaction of the City no later than the 30th day of June, 2013.

3. **FEES:** The City agrees to pay Contractor a total amount not to exceed **Twenty-Five Thousand Dollars (\$25,000.00)** each year for the services set forth in Appendix A upon acceptance of performance by the City. Payment is to be made in one lump sum on or before the 15th day of December, 2011 and 2012. If the scope of the Program changes, amendments to this Agreement shall be in writing.

Payment by the City to the Contractor for the services performed under the terms and conditions of this Agreement is contingent upon the availability of the City funds which are appropriated and allocated for payment of such obligation. The City shall notify the Contractor at the earliest possible time of any such shortage or depletion of funds.

4. **RIGHT TO TERMINATE AGREEMENT:** It is mutually agreed and understood that the City reserves the right to cancel this Agreement at any time, provided, however, that the City shall pay the Contractor on a pro rata basis for services rendered up to the time of cancellation. In the event of cancellation, all property and documents, data, studies and reports purchased, prepared

or related to this Agreement shall become the property of the City. Notwithstanding the above, the Contractor shall not be relieved of liability to the City for damages sustained by the City because of any breach of this Agreement by the Contractor, and the City may withhold any reimbursement to the Contractor for the purpose of set-off until such time as the exact amount of damages due the City from the Contractor is agreed upon or otherwise determined.

5. PUBLICATION AND PUBLICITY: The Contractor may not publish results, data or findings arising from its performance of this Agreement in the absence of the prior written approval of the Human Services Advisory Council. A copy of the publication will be furnished to the City.

6. WYOMING LAWS GOVERN: The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming; and the courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement.

7. COVENANT AGAINST CONTINGENT FEES: The Contractor warrants that no person, selling agency or other organization has been employed or retained to solicit or secure this Agreement upon agreement or understanding for a commission, percentage, brokerage or contingent fee. For breach or violation of this warrant, the City shall have the right to annul this Agreement without liability or, in its discretion, to deduct from the compensation, or otherwise recover, the full amount of such commission, percentage, brokerage or contingent fee.

8. INDEMNITY: The Contractor agrees to defend, hold harmless and indemnify the City, its officials, employees and authorized volunteers against any and all claims arising out of the tortious conduct of the Contractor, its agents, employees and volunteers, including any and all claims for premises liability, excepting those claims which are determined to have arisen, in whole or in part, from the negligence of the City, its officials, employees or authorized volunteers.

9. GOVERNMENTAL IMMUNITY: The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq.

10. EEOC COMPLIANCE: All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex. The parties further assure that they will include the language of this

paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause therein.

11. EMPLOYMENT PRACTICES OF CONTRACTOR: The Contractor must comply in its employment practices with all applicable state and federal laws regulating discrimination in employment. If the Contractor or its employees or subcontractors are determined to be in violation of these requirements, this Agreement may be terminated. The Contractor shall indemnify and hold the City of Cheyenne harmless from any and all claims, demands, causes of action, damages, injuries and other liabilities which may be asserted against or imposed upon the City of Cheyenne as a result of the employment practices of Contractor or its assigns.

12. POLITICAL ACTIVITY PROHIBITED: None of the funds, materials, property or services contributed by the City or the Contractor shall be used in the performance of this Agreement for any partisan political activity, or to further the election or defeat of any candidate for public office.

13. RELIGIOUS ACTIVITY PROHIBITED: There shall be no religious worship, instruction or proselytization as part of or in connection with the performance of this Agreement.

14. COMPLIANCE WITH APPLICABLE LAW: The Contractor agrees to comply with all applicable local, state and federal laws, rules and regulations in the performance of this Program. Failure to do so will give the City the right to immediately terminate this Agreement.

15. RECORDS AND ACCOUNTS: The Contractor shall maintain fiscal records and accounts as required by Wyoming law and as required by the City to assure proper accounting for Program funds. These records shall be made available for audit purposes to the City and will be retained by the Contractor for three years after the expiration of the Agreement. The Contractor shall file with the City Treasurer an audited financial statement as completed each year with a copy to the Cheyenne City Council.

16. REPORTS AND INSPECTIONS: The Contractor shall produce financial, program progress and other reports, and will permit on-site inspections upon request by the City.

17. INSURANCE: The Contractor must provide proof of the following insurance coverages:

a. Commercial General Liability Insurance. For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss

or use thereof, with minimum limits of \$250,000.00 per claimant, \$500,000.00 per occurrence, for the entire term of this Agreement.

b. Business Automobile Insurance. Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$500,000.00 per occurrence for the entire term of this Agreement.

c. Workers' Compensation. Workers' compensation coverage shall be in effect, as required by Wyoming law, for all employees or agents providing services under this Agreement. Contractor shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

d. Professional Liability Insurance. In an amount not less than \$500,000.00 per occurrence and \$500,000.00 aggregate limit, or such lesser amounts as the City of Cheyenne's Risk Manager may specifically authorize in writing.

e. Additional Insurance Information. The Contractor shall name the City of Cheyenne as an additional insured by endorsement on its insurance policies, with the exception of workers' compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Contractor shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All insurance certificates provided by Contractor must include a clause stating that the insurance may not be cancelled, amended or allowed to lapse without at least thirty days advance written notice to the City of Cheyenne. In addition, Contractor shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements and certificates shall not affect the City's rights or Contractor's obligations hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

18. INDEPENDENT CONTRACTOR. The Contractor shall function as an independent contractor for the purposes of this Agreement. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this

Agreement. Nothing in this Agreement shall be interpreted as authorizing the Contractor or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on behalf of the City.

19. CHANGES, MODIFICATION, REVISIONS AND AMENDMENTS: This Agreement may not be modified, altered or amended except by written instrument, executed and signed by all parties to this Agreement.

20. SUCCESSORS AND ASSIGNS. It is mutually agreed and understood that all of the covenants and agreements contained herein shall extend to and be obligatory on the successors and assigns of the respective parties.

21. EMBODIMENT OF AGREEMENT: This Agreement contains the entire understanding of the parties, and there are no other terms or conditions, oral or written, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties hereto have executed this instrument on the day and year first above written.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk

MEALS ON WHEELS OF CHEYENNE, INC.

BY:

Director

APPENDIX “A”

MEALS ON WHEELS OF CHEYENNE, INC.

Program:
Therapeutic Nutritious Meals and Ancillary Services

Mission: Meals on Wheels is a private non-profit agency that provides nutritious meals and other homebound services to the elderly, disabled, ill and frail persons in order to allow them to remain in their homes in a dignified manner by utilizing a professional staff who are assisted by a host of volunteers.

Program Purpose: To prevent early institutionalization of the elderly, disabled, ill, convalescing, frail or other homebound person of Laramie County by the provision of services which help people to remain in their homes longer at a lesser cost and helps to give them the right of choice and allows them to age in place.